



Republic of the Philippines
Province of La Union
MUNICIPALITY OF AGOO

OFFICE OF THE SANGGUNIAN BAYAN

MUNICIPAL ORDINANCE NO. 06 - 2026

AN ORDINANCE ESTABLISHING THE INSTITUTIONAL MECHANISM FOR TRAFFICKING IN PERSONS, PROTECTION AND SUPPORT OF TRAFFICKED PERSONS PURSUANT TO THE PROVISIONS OF REPUBLIC ACT NO. 9208, OTHERWISE KNOWN AS THE "ANTI-TRAFFICKING IN PERSONS OF REPUBLIC ACT OF 2003," AS AMENDED BY REPUBLIC ACT NO. 10364, OR THE "EXPANDED ANTI- TRAFFICKING IN PERSONS ACT OF 2012," AND FOR OTHER PURPOSES IN THE MUNICIPALITY OF AGOO, LA UNION.

Authored by SBM Anthony P. Quero
Co-Authored by SBM Rogelio R. Garabiles

WHEREAS, the State values the dignity of every human person and guarantees the respect of individual rights;

WHEREAS, Congress enacted Republic Act (R.A.) No. 9208, otherwise known as the Anti-Trafficking in Persons Act of 2003, with the sole objective of eliminating trafficking in persons and ensuring the victim's recovery, rehabilitation, and reintegration into the mainstream of society, thereby promoting the dignity of every human being;

WHEREAS, under section 144 Paragraph 2 of Rules and Regulations implementing R.A. No. 9208, the Local Government Unit is mandated to enact ordinances or issuances aimed at providing protection and support to trafficked persons and their families;

WHEREAS, Section 16 (j) of Republic Act No. 9208 mandates local government units to monitor and document cases of trafficking in persons in their areas of jurisdiction, effect the cancellation of licenses of establishments which violate its provisions and ensure effective prosecution of such cases;

WHEREAS, the Philippine Government declared its full support to the worldwide campaign to fight TIP when in Congress passed the amendments to Republic Act No. 9208 under Republic Act No. 10364, also known as the "Expanded Anti-Trafficking in Persons Act of 2012" which was formally signed into law by the President on February 6, 2013;

WHEREAS, the Republic Act 10364 widened the definition of trafficking in persons and created an inter-agency council against trafficking and instituted policies to eliminate Trafficking in Persons (TIP), especially women and children, establishing the necessary institutional mechanisms for the protection and support of trafficked persons, providing penalties for its violations and other purposes;

WHEREAS, pursuant to Section 19 of the Rules and Regulations Implementing Republic Act No. 9208 (as amended), the local government units (LGUs) shall enact ordinances aimed and providing protection and support to trafficked persons and their families;

WHEREAS, in line with the objective of the current administration to make the Municipality of Agoo, La Union a safe municipality for all its residents, it is imperative that this concern be directly and effectively addressed by the Municipal Government of Agoo, La Union in order to prevent the municipality from becoming a source, transit point or destination of trafficking victims.

BE IT ORDAINED, by the Sangguniang Bayan of Agoo, La Union in session assembled, that:

Section 1. Short Title. - This Ordinance shall be known as the "Anti-Trafficking in Persons of the Municipality of Agoo, La Union."

Section 2. Declaration of Policy. - It is hereby declared that it is the policy of the value the dignity of every human person and guarantees the respect of individual rights. In pursuit of this policy, the municipality shall give highest priority to the enactment of measures and development of programs that will promote human dignity, protect the people from any threat of violence and

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exploitation, eliminate trafficking in persons, and mitigate pressures for involuntary migration and servitude of persons, not only to support trafficked persons but more importantly, to ensure their recovery, rehabilitation and reintegration into the mainstream of society.

It shall be a policy of the municipality to recognize the equal rights and inherent human dignity of women and men as enshrined in the United Nations Universal Declaration on Human Rights; United Nations Convention on the Rights of the Child; United Nations Convention on the Protection of Migrant Workers and their Families; United Nations Convention Against Transnational Organized Crime Including its Protocol to Prevent, Suppress and Punish Trafficking in Persons, Especially Women and Children; and all other relevant and universally accepted human rights instruments and other international conventions to which the Philippines is a signatory.

The Municipal Government of Agoo, La Union shall address the problem of trafficking in persons, especially women and children, at the local level by instituting policies and programs to prevent, protect and rehabilitate trafficked persons.

Section 3. Definition of Terms. - The following definitions of terms are hereby adopted from Article 2 Section 5 of Republic Act No. 9208 as amended by Republic Act No. 10364:

(a) **Accessories** - whoever has the knowledge of the commission of the crime and without having participated therein, either as principal or accomplice, take part in its commission in any of the following manners:

- a.1. Profiting themselves on assisting the offender to profit by effect of the crime;
- a.2. Concealing or destroying the body of the crime or effects or instruments in order to prevent its discovery;
- a.3. Harboring, concealing, or assisting in the escape of the principal of the crime, provided the accessory acts with the abuse of his or her public functions or is known to be habitually guilty of some crime.

(b) **Child** - refers to a person below eighteen (18) years of age or one who is over 18 but is unable to fully take care or protect himself or herself from abuse, neglect, cruelty, exploitation or discrimination because of a physical or mental disability or condition.

(c) **Council** - shall mean the Inter-Agency Council Against Trafficking created under Section 6 of R.A. No. 10364.

(d) **Debt Bondage** - refers to the pledging by the debtor of his/her personal services or labor or those of a person under his/her control as security or payment for a debt, when the length and nature of services is not clearly defined or when the value of the services as reasonably assessed is not applied toward the liquidation of the debt.

(e) **Forced Labor** - refers to the extraction of work or services from any person by means of enticement, violence, intimidation or threat, use of force or coercion, including deprivation of freedom, abuse of authority or moral ascendancy, debt bondage or deception including any work or service extracted from any person under the menace of penalty.

(f) **Involuntary Servitude** - refers to a condition of enforced and compulsory service induced by means of any scheme, plan or pattern, intended to cause a person to believe that if he or she did not enter into or continue in such condition, he or she or another person would suffer serious harm or other forms of abuse or physical restraint, or threat of abuse or harm, or coercion including depriving access to travel documents and withholding salaries, or the abuse or threatened abuse of legal process.

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(g) **Sexual Exploitation** - refers to participation by a person in prostitution, pornography or the production of pornography, in exchange for money, profit or any other considerations or where the participation is caused or facilitated by any means of intimidation or threat, use of force, or other forms of coercion, abduction, fraud, deception, debt bondage, abuse of power or position of legal process, taking advantage of vulnerabilities of the person; or giving, or receiving of payments or benefits to achieve the consent of a person having control over another person; or facilitated by any means as provided in these acts.

(h) **Slavery** - refers to the status or condition of a person over whom any or all of the powers attaching to the right ownership are exercised.

(i) **Trafficking in Persons** - refers to the recruitment, obtaining, hiring, providing, offering, transportation, transfer, maintaining, harboring, or receipt of persons with or without the victims' consent or knowledge, within or across national borders by means of threat or use of force, or other forms of coercion, abduction, fraud, deception, abuse of power or position, taking advantage of the vulnerability of the person, or the giving or receiving of payments or benefits to achieve the consent of a person having control over another person for the purpose of exploitation which includes at a minimum, the exploitation or the prostitution of other or other forms of sexual exploitation, forced labor or services, slavery, servitude or the removal or sale of organs.

The recruitment, transportation, transfer, harboring, adoption, or receipt of a child for the purpose of exploitation or when the adoption is induced by any form of consideration for the purpose of exploitation shall also be considered as Trafficking in Persons even if it does not involve any means set forth in the preceding paragraph, pursuant to R.A. No. 10364.

The use, procuring or offering of a child for the production and trafficking of drugs.

The use, procuring or offering of a child for illegal activities or work, which by nature or the circumstances it is carried out, is likely to harm their health, safety and morals.

(j) **Pornography** - refers to any representation, through publication, exhibition, cinematography, indecent shows, information technology, or by whatever means of a person engage in real or simulated explicit sexual activities or any representation of the sexual parts of a person for primarily sexual purposes.

(k) **Prostitution** - refers to any act, transaction, scheme, or design involving the use of person by another, for sexual intercourse or lascivious conduct in exchange for money, profit or any other consideration.

(l) **Recovery Act Reintegration Programs for TIP** - DSWD/ MSWD comprehensive program that ensures adequate recovery and reintegration services provided to trafficked persons.

(m) **Victim Processing Center** - a discrete, secure and dignified space of victims for a stay of at least 3 days to allow immediate/initial: processing of the survivor's reaction after rescue, completion of key post-operation support activities and gather victim testimonies to be submitted in legal proceedings against their perpetrators.

(n) **Sex Tourism** - refers to a program organized by travel and tourism-related establishments and individuals which consists of tourism packages or activities, utilizing and offering escort and sexual services as enticements for tourists.

(o) **Local IACT** - refers to the Local Inter-Agency Council Against Trafficking.

(p) **GAD** - refers to Gender and Development.

(q) **GFPS** - refers to Gender Focal Point System.

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(n) GPB - refers to Gender and Development Plan and Budget.

(s) BCPC - refers to Barangay Council for the Protection of Children.

Section 4. Presumption of Child Trafficking. - Adults who are traveling with minors not their relatives by consanguinity or affinity, who fail to present appropriate documents, are deemed to have committed acts constituting child trafficking.

Section 5. Local Inter-Agency Council Against Trafficking. - There is hereby established in the Municipality of Agoo, La Union a Local Inter-Agency Council Against Trafficking, to be composed of Municipal Mayor as Chairperson, and shall have the following as members:

- a) Municipal Social Welfare and Development Officer
- b) Municipal Health Officer
- c) Public Employment Services Officer
- d) Chairperson, SB Committee on Tourism Development, Social and Cultural Development.
- e) Chairperson, SB Committee on Health, Disaster and Risks Reduction Management
- f) Chairperson, SB Committee on Barangay Affairs and Development
- g) Chairperson, SB Committee on Youth and Sports Development
- h) Chairperson, SB Committee on Law Enforcement and Peace and Order
- i) Chief of Police, PNP Agoo, La Union
- j) Prosecutor- Agoo
- k) Representative, Public Attorney's Office - Agoo
- l) Representative, Philippine Coast Guard - Agoo
- m) Schools Division Superintendent or his representative's, Department of Education
- n) Representative, TESDA
- o) Three (3) representatives from NGOs, who shall be composed of one (1) representative each from among the sectors representing women, Overseas Filipino Workers (OFWs) and children. These representatives shall be nominated by the government agency' representatives of the Council, for appointment by the Municipal Mayor for a term of three (3) years.

Section 6. Functions of the Council- The Local IACT shall have the following powers and functions

A. Oversee the implementation of the provisions of Republic Act No. 9208 and its implementing rules and regulations, which includes the following:

1. Formulate a comprehensive and integrated program to prevent and suppress the trafficking in persons;
2. Monitor and oversee the strict implementation of the municipality's program and prevention and suppression of trafficking in persons;
3. Coordinate the programs and projects of the various member agencies to effectively address the issues and problems attendant to trafficking in persons;
4. Coordinate the conduct of massive information dissemination and campaign on the existence of the law and the various issues and problems attendant to trafficking through the concerned offices, agencies, and/or NGOs;
5. Direct other agencies to immediately respond to the problems brought to their attention and report to the Council in action taken;

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SBM REYNALDO A. OLLER

SBM ROBERTO P. FORTANILLA

SBM ANTHONY P. QUERO

SBM PRISCILLA B. KOMIYA

SBM MARK-ANTHONY T. REFUGIA

6. Assist filling of cases against individuals, agencies, institutions, or establishments that violent the provisions of the law;
7. Formulate a program for the reintegration of trafficked persons in cooperation with DOLE, DSWD, Technical Education and Skills Development Authority (TESDA), Commission on Higher Education (CHED), and NGOs;
8. Secure from any department, bureau, office, agency, or instrumentality of the government or from NGOs and other civic organizations such assistance as may be needed to effectively implement the provisions of the law;
9. Develop the mechanism to ensure the timely, coordinated. and effective response to cases of trafficking in persons;
10. Coordinate with the Department of Information and Communications Technology (DICT), Department of Trade and Industry (DTI), and other NGOs in monitoring the promotion of advertisement of trafficking in the internet;
11. Adopt measures and policies to protect the rights and needs of trafficked persons who are foreign nationals in the Municipality;
12. Initiate training programs in identifying and providing the necessary intervention or assistance to trafficked persons; and
13. Exercise all the powers and perform such other functions necessary to attain the purposes and objectives of Republic Act No. 9208.

Section 7. Secretariat to the Council. - The Municipal Social Welfare and Development Officer shall act as the Secretariat for the Council.

Section 8. Meetings And Quorum. - The Local IACT shall meet quarterly in a year. Special meetings may be called upon by the Chairperson or upon the request of the majority of the Committee members.

Section 9. Anti-Trafficking in Persons Database. - The Municipal Government of Agoo, La Union, through the Municipal Social Welfare and Development (MSWD) Officer, shall monitor and document cases of trafficking in persons within territorial jurisdiction.

The MSWD, is hereby tasked to ensure the harmonization and standardization of databases, including minimum data requirements, definitions, reporting formats, data collection systems, and data verification systems. Such databases shall have, at the minimum, the following information:

- i. The number of cases of TIP, sorted according to status of cases, including the number of cases being investigated, submitted for prosecution, dropped. and filed and/or pending before the courts and the number of convictions and acquittals;
- ii. The demographic profile/information on each case (sex and age disaggregated);

Section 10. Provision of Financial Assistance to Victim and Survivors of Trafficking. - The Municipal Government of Agoo, La Union, shall provide financial assistance for victims/survivors of TIP and other forms of sexual exploitation. These assistances shall be used for medical, hospital, legal, and educational needs of the victims/survivors. It can also be used for counseling and social intervention. The MSWD shall oversee assessment and recommendation of assistance of the victims/survivors of TIP and other forms of sexual exploitation.

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Municipal Mayor

SBM STEVEN LAWRENCE G. LOMBROY

SBM JUAN C. BOADO

SBM ROGELIO R. GARABILES

(On Official Business)
SBM ERWIN B. CASTRO

SBM ROSEPHINE G. CORTIZ



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Section 11. Information Campaign on Anti-Trafficking. – The Municipal Government of Agoo, La Union shall utilize the Migrant Advisory and Information Network (MAIN) Desk established under Pursuant to E.O. 45-A -2023. To ensure an integrated and concerted effort.

The MAIN Desk in addition to its defined functions of generating, maintaining, and providing information related to human trafficking (based on DILG MC No. 2005-26), in coordination with concerned local offices, undertake the following related activities:

1. Preparation of referrals of Mail Order Bride cases;
2. Documentation of cases of trafficking and illegal recruitment;
3. Establishment and partnership with Local Public Employment Service Office (PESO) in generating information of illegal recruiter with the Municipal Social Welfare and Development Office on the provision of data on victims/affected family for livelihood assistance;
4. Development and dissemination of IEC materials on cases of trafficked persons /children, and;
5. Maintaining partnership with the local media on campaign against human trafficking.

Section 12. Cancellation of Licenses of Establishments Engaged in Trafficking Activities. – The Office of the Mayor, through the Business Permits and Licensing Office (BPLO), shall, after due notice and hearing, effect the cancellation of business permits and licenses of establishments on the following grounds:

- (a) Upon lawful order of the court;
- (b) Upon issuance of permanent closure order by the Department of Labor and Employment for violation of R.A. No. 9231 (An Act Providing the Elimination of the Worse Forms of Child Labor and Affording Stronger Protection for the Working Child) in relation to R.A. No. 10364;
- (c) When the establishment or its owner or any of its staff violates the provisions of R.A. No. 10364.

The proceedings arising from this Section shall be summary in nature.

Upon receipt of the Order of the DOLE (Sec. 15.a), or information of the Order of the DOLE (Sec. 15.b) or information or report that an establishment or its personnel had violated any provisions of R.A. No. 10364 the Office of the Mayor or through the Head of the BPLO, shall send a Show Cause Order to the registered owner of the concerned establishment requiring the latter to submit evidence why the cancellation of the business is not an appropriate remedy.

The concerned business establishment shall have a period of three (3) days to submit countervailing evidence upon receipt of the order. No motion or request for extension shall be entertained, and such motion shall be taken as a waiver on the part of the establishment to contest the findings and recommendations of the Office of the Mayor. Upon receipt of the reply, the Office of the Mayor shall forthwith resolve the issue within the period of not more than ten (10) days.

The Order canceling the business permit shall take effect immediately upon signing of the Mayor. No motion for reconsideration shall be entertained.

Section 13. Appropriation. – Funds shall be allocated for expenses for the implementation of this Ordinance. The annual budget of the Local IACT for purposes of implementing this Ordinance shall be drawn from the Gender and Development (GAD) Fund of the LGU, subject to the availability of funds.

Section 14. Repealing Clause. – All ordinances, resolutions, executive issuances, or rules and regulation, or parts thereof, which are inconsistent with or contrary to the provisions of this Ordinance, are hereby deemed repealed, amended, or modified accordingly.

Section 15. Applicability Clause. –The provisions of existing ordinances, resolutions, or executive orders dealing with related subject matter such as protection against child labor and exploitation, anti-violence against women and children, and the like which are not contradictory with this Ordinance, are hereby adopted as an integral part of this Ordinance.

FRANCISCO A. VERGARA
Secretary to the Sanggunian

ANTONIO A. ESILAO
Municipal Vice Mayor

FRANK O. SIBUMA
Municipal Mayor



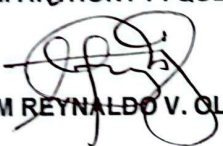
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Section 16. Separability Clause. – If for any reason, any section, or provisions of this Ordinance is held unconstitutional or invalid, the other sections or provisions hereof shall not be affected hereby.

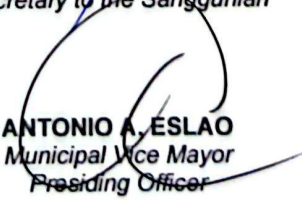
Section 17. Effectivity. This ordinance shall take effect upon compliance of the applicable provisions of Section 59 of Republic Act. No. 7160 otherwise known as the Local Government Code of 1991.

ENACTED: This 09th day of February 2026 at Agoo, La Union.

 SBM MARK ANTHONY T. REFUGIA	(On Sick Leave) SBM PRISCILLA B. KOMIYA
 SBM ANTHONY P. QUERO	 SBM ROBERT A. FONTANILLA
 SBM REYNALDO V. OLLER	 SBM STEVE LAWRENCE G. LOMBOY
 SBM JEAN C. BOADO	 SBM ROGELIO R. GARABILES
(On Official Business) SBM ERWIN B. CASTRO Liga ng mga Barangay President	 SBM ROSEPHINE GWYNETH A. CORTEZ SK Federation President

I HEREBY CERTIFY THAT THIS IS TRUE AND ACCURATE COPY OF THE ORDINANCE
DULY ENACTED BY THE SANGGUNIAN ON FEBRUARY 09, 2026.


FRANCISCO A. VERGARA
Secretary to the Sanggunian


ANTONIO A. ESLAO
Municipal Vice Mayor
Presiding Officer


FRANK O. SIBUMA
Municipal Mayor
Date Signed: FEB 24 2026